

SECURE FUNDER™

Program Terms

Version 1.0 | Effective Date: April 1, 2026

These terms outline the policies governing participation in the Secure Funder™ certification program. By enrolling, participants acknowledge and accept the terms described herein.

1. Program Overview

Secure Funder™ is an independent certification program for the alternative finance industry. Certification is based on verifiable safeguards applied consistently across participating organizations. Equivalent controls may be accepted when they satisfy the intent of a requirement and can be independently verified.

The program is designed for funders of all sizes and focuses on protecting submissions and the documents associated with them. Enrollment is voluntary.

2. Certification Guarantee

Certification is not guaranteed. Participants must meet all program requirements. Open or pending litigation involving misuse, unauthorized sharing, or mishandling of customer data will pause the certification process. Certification status will not be granted while such matters remain outstanding.

3. Verification Process

Verification may be completed through either of the following methods:

- **Live verification** — a structured walkthrough conducted via screen share. The participant is in control at all times. Secure Funder™ does not access participant systems directly. Live sessions are not recorded.
- **Online verification** — a self-guided process completed through the Secure Funder™ portal. Participants answer questions, upload supporting documentation, and provide video evidence where applicable.

All submissions, regardless of method, go through a final review before certification is granted.

4. Evidence Handling & Data Security

Documents, videos, and other materials submitted during verification are housed on SOC 2 certified infrastructure and maintained using reasonable administrative and technical safeguards appropriate to the nature of the information provided.

Documentation is retained only for as long as reasonably necessary to support verification records, program administration, and related status determinations, after which it is securely deleted or destroyed in a manner intended to prevent unauthorized access.

5. Confidentiality

Secure Funder™ treats non-public information shared during verification as confidential and uses such information solely for the purpose of conducting the verification review and administering the program.

Except as required by law, Secure Funder™ does not disclose internal materials, operational details, policies, procedures, or other non-public information obtained during verification to third parties. Access to submitted materials is limited to individuals directly involved in the verification process or program administration and only on a need-to-know basis.

Secure Funder™ does not publish internal documentation or detailed findings beyond an organization's participation status, verification status, or other limited program-related designation.

6. Enrollment, Timeline & Payment

Safeguards are not required to be in place at enrollment, but must be fully implemented before verification. Verification must be completed within 90 days of enrollment. Listings may be removed if verification is not scheduled within that period, although extensions may be granted under special circumstances.

The annual program fee is \$2,499 USD. No payment is due until verification is scheduled. Once verification is scheduled, payment instructions and portal access will be provided. Monthly installments are available.

7. Refund Policy

No refunds are available once verification has commenced. This applies regardless of outcome, including if the participant does not pass verification or does not complete the verification process.

8. Participant Responsibilities

To support an efficient and fair review, participating organizations are expected to:

- Provide accurate and complete information relevant to the safeguards being reviewed
- Present materials and demonstrations in good faith
- Notify Secure Funder™ of any material changes that may affect certification status
- Notify Secure Funder™ if a material inaccuracy is later discovered in information previously provided
- Cooperate reasonably with follow-up questions or clarification requests related to the review

Verification depends on the accuracy and completeness of the information made available at the time of assessment. Misrepresentation of information during the verification process is grounds for immediate revocation of certification with no refund.

9. Certification Status & Badge Usage

Digital certification badges are issued upon successful verification and remain valid for the duration of active membership. Badges may only be displayed while the organization holds active Secure Funder™ certified status.

Certification may be revoked if required safeguards are no longer maintained or if information provided during verification is found to be inaccurate. Upon revocation or lapse of certification, organizations must promptly remove all Secure Funder™ badges, marks, and references to certified status from their materials.

10. Nature & Limits of Certification

Secure Funder™ certification reflects alignment with program requirements at the time of review. It does not constitute:

- A regulatory examination
- A legal opinion
- A cybersecurity audit
- A guarantee of future performance
- A representation that risk has been eliminated

Certification does not guarantee the prevention of data theft, unauthorized sharing, or misuse. A certification outcome reflects Secure Funder™'s determination that the participating organization demonstrated alignment with applicable program requirements based on the information available during the review period.

11. Limitation of Liability & Indemnification

Secure Funder™ and its affiliates, including Aquamark and Duncan Consulting LLC, shall not be held liable for any claims, damages, losses, or liabilities arising from a participant's certification status, lack thereof, or any actions taken in reliance on certification.

Participants agree to indemnify and hold harmless Secure Funder™, Aquamark, Duncan Consulting LLC, and their respective officers, employees, and agents from any claims, demands, or actions arising out of the participant's enrollment, verification, certification status, or use of program materials.

12. Program Amendments

Secure Funder™ is designed to evolve alongside emerging regulation and compliance expectations so members can stay ahead of change. Program requirements, policies, and terms may be updated from time to time to reflect industry developments, regulatory changes, or operational improvements.

Participants will be notified of material changes in advance. Continued participation following notice of changes constitutes acceptance of updated terms.

13. Governing Law

These terms shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws provisions.

14. Contact

Questions regarding these terms, verification, or the handling of submitted materials may be directed to:

Secure Funder™
info@aquamark.io
(415) 500-1117